

HOUSE BILL 6007

By Faison

AN ACT to amend Tennessee Code Annotated, Title 58,
Chapter 8 and Title 67, Chapter 5, relative to
emergency events.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 67, Chapter 5, Part 6, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Property":

(A) Means all real or personal property that is subject to taxation
under this chapter; and

(B) Does not include:

(i) Intangible personal property, as defined in § 67-5-
501(5); or

(ii) Public utility property, as defined in § 67-5-501(9); and

(2) "Qualified disaster" means any disaster certified by the federal
emergency management agency (FEMA) occurring on or after September 26,
2024, and before September 30, 2024.

(b) In connection with a qualified disaster in order to promote the general
welfare, subject to the requirements of this section and subject to an appropriation by the
general assembly, the comptroller shall disburse payments directly to owners of
property:

(1) Whose property:

(A) Was destroyed or damaged by a qualified disaster, as determined by the assessor of property by January 28, 2025; and

(B) Is located in a county included in the FEMA declaration; and

(2) Who owned the affected property at the time of the qualified disaster.

(c) The payments disbursed pursuant to subsection (b) must be in an amount equal to the total amount of the tax levied on the property for tax year 2024 plus thirty percent (30%).

(d) By June 30, 2025, owners of property who are eligible for payment under subsection (b) shall provide to the comptroller of the treasury all information and correctly completed documentation necessary for payment disbursement, as determined by the comptroller of the treasury. The comptroller shall determine the means by which owners of property must submit the necessary documentation and information. Failure to provide all necessary information and correctly completed documentation under this subsection (d) must result in forfeiture of eligibility for payment under this section.

(e) This section applies regardless of whether the property was restored or replaced by December 31, 2024.

(f) This section is deleted on December 31, 2025.

SECTION 2. Tennessee Code Annotated, Section 58-8-106, is amended by deleting the section and substituting instead:

Upon receiving a request for mutual aid in an occurrence or for assistance from a requesting party in a municipal, county, state, or federal state of emergency, a participating governmental entity may, subject to the approval of the chief executive officer of the governmental entity, send its personnel and equipment outside its boundaries and into any other jurisdiction necessary to respond to the request.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.